

However, this requirement can be satisfied by the filing of a proposed answer at any time before the hearing. See *Hu v. Fang* (2002) 104 Cal.App.4th 61, 65. Accordingly, as set forth below, the Court is inclined to grant the motion if Defendant appears and lodges a proposed form of responsive pleading.

Disposition

The Court finds and orders as follows:

1. For the reasons discussed above, the parties are **ORDERED TO APPEAR** to address the proposed form of responsive pleading, such as an Answer. **Defendant is directed to bring a form of proposed responsive pleading, such as an Answer, to the hearing.**
2. Subject to Paragraph 1 above, the Motion to Set Aside Default is GRANTED.
3. Defendant shall file and serve a responsive pleading within ten (10) days.

7. 9:00 AM CASE NUMBER: L25-05488

CASE NAME: CAPITAL ONE, N.A. VS. CHERYL RUIZ

*HEARING ON MOTION IN RE:

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

_ Plaintiff Capital One, N.A. ("Plaintiff") filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 6, 2025 (the "Motion to Deem Admissions") as against defendant Cheryl L Ruiz ("Defendant"). The Motion to Deem Admissions was set for hearing on December 23, 2025. Opposition papers were filed on December 12, 2025.

Background

Plaintiff indicates that it served Defendant with a set of requests for admissions. See Declaration of Brian Langedyk filed October 6, 2025 as part of the Motion to Deem Admissions ("Supporting Declaration"), ¶2 and **Exhibit 1** thereto (the "RFAs").

Plaintiff's Supporting Declaration indicates that the RFAs were served on August 11, 2025 by mail to Defendant. *Id.* at ¶2 and **Exhibit 1** [attached Proof of Service dated August 11, 2025 (the "Proof of Service")]. The service was asserted to have been done at an address in Oakley, California:

NAME AND ADDRESS OF EACH PERSON SERVED:

Cheryl L Ruiz
117 Old Oak Court
Oakley, CA 94561

See Proof of Service, Supporting Declaration, **Exhibit 1**.

The Opposition includes a declaration by Defendant (the “Opposition Declaration”) asserting that Defendant “never received request for admissions paperwork” that Plaintiff contends was sent to her. See Opposition Declaration, ¶1.

Assuming service was made, the responses were due to be served on or before September 15, 2025, including a five calendar day extension for service of the RFAs by mail (30 days from and after August 11, 2025 was September 10, 2025 and five calendar days thereafter fell on September 15, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶3.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

A responding party’s service, before the hearing on a “deemed admitted” motion, of **substantially compliant** responses, defeats a propounding party’s attempt to have the requests for admissions deemed admitted. Code Civ. Proc. § 2033.280(c); *St. Mary v. Superior Court*, *supra*, 223 Cal.App.4th at 776; see also CJER, *California Judges Benchbook: Civil Proceedings - Discovery* (2024) (“CJER Civ. Proc. Discovery”), § 21.22. A monetary sanction remains strictly mandatory against the party or attorney, or both, whose late response necessitated the making of the motion. Code Civ. Proc. § 2033.280(c); see CJER Civ. Proc. Discovery, § 21.22.

The address used for service of the RFAs on Defendant, as reflected in Plaintiff’s Proof of

Service, is the correct address for Defendant. The only evidence presented to show the lack of receipt is Defendant’s own uncorroborated statements.

In any event, the right to move for a deemed admitted order turns on proper service, not proof of actual receipt.* Code Civ. Proc. §§ 2033.070 (“The party requesting admissions shall serve a copy of them on the party to whom they are directed and on all other parties who have appeared in the action.”) and 2033.210 (“The party to whom requests for admission have been directed shall respond...”).

The Court next turns to whether the pending motion should be denied because Defendant provided Plaintiff with responses to the RFAs. The Opposition states that Defendant “will serve substantially compliant response before motion hearing on 12/23/2025.” See Opposition, p. 2.

No further declaration addressing any such responses to the RFAs has been filed to date.

*While the Court might well have discretion in the interests of justice to deny a discovery motion if it were persuaded that a responding party never actually received the discovery request at issue, the Court cannot come to that conclusion here, by a preponderance of the evidence.

Disposition

The Court further finds and orders as follows:

1. The **PARTIES ARE ORDERED TO APPEAR** to address the status of service of any responses to the RFAs by Defendant.

8. 9:00 AM CASE NUMBER: L25-07949
CASE NAME: ONEMAIN FINANCIAL GROUP, LLC VS. SOLOMON JAPPA
HEARING IN RE: MOTION TO COMPEL ARBRITRATION & DISMISS
FILED BY:
TENTATIVE RULING:

Defendant Solomon V. Jappa (“Defendant”) filed a Motion to Compel Arbitration and Dismiss or Stay Proceedings on November 6, 2025 (the “Arbitration Motion”). The Arbitration Motion was set for hearing on December 23, 2025.

A Proof of Service of the motion on the plaintiff OneMain Financial Group, LLC (“Plaintiff”) has been filed.

Plaintiff filed an Opposition on December 10, 2025.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties’ agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2025) (“CJER Civ. Proc. before Trial”), § 3.35.